

25STCP02073 25STCP02073

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-08-31

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C510%2C08%2F31%2F2026

Source SHA-256: f6b6f142a7a9253eaa4978ffae422ca18975d327b108fa5081f1c623a1585324

Case Number: 25STCP02073 Hearing Date: August 31, 2026 Dept: 510

No.

3 - Buttermilk Creative Inc. v. Mark Seed

Defendant Mark Seed's Motion to Set

Aside Default Judgment

Defendant

Mark Seed moves to set aside the default judgment entered against him on March 26, 2026 under Code of Civil Procedure section 473(d).

Evidentiary

Objections

Defendant makes 4 evidentiary

objections to the evidence submitted by Plaintiff in support of its opposition.

Objections nos. 1-2 and 4 are sustained based on lack of foundation.

Objection no. 3 is overruled.

Motion

to Set Aside

Under

Code of Civil Procedure section 473(d), "The court may . . . on motion of either party after notice to the other party, set aside any void judgment or order." " '[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.] Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.' "

(Ellard v. Conway (2001) 94 Cal.App.4th 540, 544.) “Under section 473, subdivision (d), the court may set aside a default judgment which is valid on its face, but void, as a matter of law, due to improper service.” (Ibid.)

Defendant

shows that Plaintiff did not properly establish personal jurisdiction over him. On November 4, 2025, Plaintiff filed an application for publication of the summons with the Court, which the Court granted. To obtain an order for publication, the plaintiff must show reasonable diligence in serving the defendant by some other manner. (Code Civ. Proc., § 415.50, subd. (a).) Likewise, the plaintiff must establish that a cause of action exists against the defendant via the testimony of an individual with personal knowledge of the underlying facts. (Harris v. Cavasso (1977) 68 Cal.App.3d 723, 726.) “When jurisdiction is obtained by a prescribed form of constructive notice, the statutory conditions upon which service depends must be strictly construed; there must be strict compliance with the mode prescribed in the statute.” (Calvert v. Al Binali (2018) 29 Cal.App.5th 954, 962 [quoting Eagle Elec. Mfg. Co. v. Keener (1966) 247 Cal.App.2d 246, 250-251].)

In

his motion, Defendant points out that Plaintiff failed to provide the required affidavit that “[a] cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action” to support its application for publication. (CCP § 415.50(a)(1).) Instead, Plaintiff only provided a declaration of due diligence regarding prior service attempts. In addition, the “Declaration of Merits” section of the application for publication form was not completed. Therefore, because the application was unsupported by an affidavit showing a cause of action exists, the Court never obtained personal jurisdiction, and the default judgment resulting from the publication of summons is void. (See Harris v. Cavasso (1977) 68 Cal.App.3d 723, 726-727.)

Plaintiff

argues in opposition that its “application for service by publication included declarations establishing both the existence of Plaintiff’s causes of action against Defendant and the factual basis supporting those claims.” (Opp., at p. 3.) However, upon the Court’s review of the file, no such declarations exist. The default judgment must be set aside.

Because

the Court finds that the default judgment must be set aside due to Plaintiff's failure to comply with CCP § 415.50's requirements for a valid application for publication, the Court need not and does not address Defendant's other argued bases for relief under CCP § 473(d).

Disposition

Defendant

Mark Seed's motion to set aside default judgment is granted. The Court hereby vacates the default judgment entered against Defendant Seed by this Court on March 26, 2026. The Court hereby vacates the default entered against Defendant Seed on February 3, 2026. The Court sets a Case Management Conference for January 6, 2027 at 8:30 am in Department 510. Plaintiff is to give notice of the Case Management Conference concurrent with service of the summons and complaint.